

Independent Contractor Agreement

Agreement governing the independent contractor relationship between AfyaWork and Clinical Officers

1. Parties

This Independent Contractor Agreement ("Agreement") is entered into between:

AfyaWork ("Company"), a digital healthcare workforce platform operating in Dar es Salaam, Tanzania, accessible at afyawork.com; and

The Clinical Officer who registers on the Platform and accepts these terms ("Contractor").

This Agreement is incorporated into and forms part of the Clinical Officer Terms of Service. In the event of any conflict, this Agreement prevails with respect to the contractor relationship.

2. Recitals

WHEREAS, the Company operates a digital platform that facilitates the connection between verified Clinical Officers and healthcare facilities seeking locum staffing;

WHEREAS, the Contractor is a licensed Clinical Officer seeking to provide professional clinical services to healthcare facilities through the Platform;

NOW THEREFORE, in consideration of the mutual covenants contained herein, the parties agree as follows:

3. Independent Contractor Status

3.1 No Employment Relationship

The Contractor is an independent contractor and not an employee, agent, partner, or joint venture partner of the Company. Nothing in this Agreement or the Clinical Officer Terms of Service shall be construed to create an employment, agency, or joint venture relationship between the Contractor and the Company.

3.2 No Benefits

As an independent contractor, the Contractor is not entitled to and shall not receive any employee benefits from the Company, including but not limited to: annual leave, sick leave, pension or provident fund contributions, national social security contributions (NSSF), health insurance, workers' compensation coverage, or any other statutory employee benefit under the Laws of Tanzania.

3.3 Control

The Contractor retains full professional autonomy in the performance of clinical services during Shifts. The Company does not direct, supervise, or control the Contractor's clinical judgement

or methods. The Company's role is limited to facilitating the connection between the Contractor and Facilities through the Platform.

3.4 Other Engagements

The Contractor is free to provide services to other clients, employers, or platforms, provided that doing so does not breach any obligations owed to a Facility arising from an approved Shift.

4. Services

4.1 Nature of Services

The Contractor agrees to provide professional clinical services to Facilities that have approved the Contractor for a Shift through the Platform. The nature, scope, and duration of each engagement are determined by the Shift details posted by the Facility.

4.2 Professional Standards

The Contractor shall provide services:

- In accordance with all applicable laws, regulations, and professional standards governing Clinical Officers in Tanzania;
- In compliance with the licensing requirements of the Tanzania Medical and Dental Council or Medical Council of Tanganyika;
- In a professional, competent, and diligent manner; and
- In accordance with the policies and protocols of the relevant Facility.

4.3 Equipment and Resources

Unless otherwise agreed with the Facility, the Contractor shall not be required to supply their own medical equipment or consumables. The Facility is responsible for providing the tools and resources necessary for the Contractor to perform the services.

5. Compensation

5.1 CO Pay

For each completed Shift, the Company will arrange payment of the CO Pay (the flat rate set by the Facility) to the Contractor's registered mobile money account, subject to administrator approval and the payment terms in the Clinical Officer Terms of Service.

5.2 Overtime

Where overtime hours are approved under the Clinical Officer Terms of Service, the Contractor shall receive the applicable overtime rate in addition to the flat CO Pay.

5.3 No Other Compensation

The Contractor shall not be entitled to any other compensation from the Company in connection with services performed through the Platform, including reimbursement of travel expenses, unless expressly agreed in writing.

5.4 Tax Obligations

The Contractor is solely responsible for all income tax, self-employment levies, skills development levies, and any other fiscal obligations arising from payments received under this Agreement. The Company will not deduct or withhold any tax from CO Pay disbursements. The Contractor acknowledges that they are responsible for registering with the Tanzania Revenue Authority (TRA) and complying with all applicable tax obligations.

6. Licences and Credentials

The Contractor warrants and represents that:

- They hold a valid, current, and unrestricted clinical licence authorising them to practise as a Clinical Officer in Tanzania;
- They are not subject to any disciplinary proceedings, suspension, or conditions imposed by any professional regulatory body;
- They will immediately notify the Company in writing if their licence is suspended, revoked, expires, or becomes subject to any conditions; and
- They hold, or will obtain before each Shift, any specialisation-specific authorisations required by the relevant Facility or applicable law.

7. Professional Indemnity

The Contractor is strongly encouraged to maintain professional indemnity insurance appropriate to the nature of clinical services they provide. The Company does not provide professional indemnity insurance coverage to Contractors. Any claim arising from the Contractor's clinical conduct shall be the sole responsibility of the Contractor.

8. Confidentiality

8.1 Patient Confidentiality

The Contractor shall maintain strict confidentiality regarding all patient information encountered during a Shift, in accordance with applicable Tanzanian law, medical ethics, and the policies of the relevant Facility.

8.2 Platform Confidentiality

The Contractor shall treat as confidential any non-public information about the Company, its technology, business operations, pricing, or other Contractors, and shall not disclose such information to third parties without the Company's prior written consent.

8.3 Survival

The confidentiality obligations in this clause shall survive the termination of this Agreement indefinitely.

9. Intellectual Property

Any work product, reports, or documentation created by the Contractor specifically for a Facility during a Shift that constitute intellectual property shall be owned by the relevant Facility, unless otherwise agreed in writing between the Contractor and the Facility. The Contractor grants the Company a perpetual, royalty-free licence to use any feedback or suggestions provided to the Company for improving the Platform.

10. Non-Solicitation

The Contractor agrees that, during the term of this Agreement and for a period of 6 months following termination, they will not directly solicit Facilities that they have worked with through the Platform for private locum engagements outside the Platform on terms equivalent to a Shift. This restriction does not prevent the Contractor from accepting permanent employment offered by a Facility.

11. Term and Termination

11.1 Term

This Agreement commences when the Contractor creates an account on the Platform and accepts the Clinical Officer Terms of Service, and continues until terminated.

11.2 Termination by Either Party

Either party may terminate this Agreement at any time with written notice (email to support@afyawork.com is sufficient). Termination does not affect any obligation arising from a Shift already approved and not yet completed or paid.

11.3 Termination for Cause

The Company may terminate this Agreement immediately and without notice if the Contractor:

- Loses or has their clinical licence suspended or revoked;
- Commits fraud, dishonesty, or gross misconduct;

- Breaches patient confidentiality; or
- Materially breaches any provision of this Agreement or the Clinical Officer Terms of Service.

11.4 Effect of Termination

On termination, the Contractor's right to access the Platform immediately ceases. Any outstanding payments for completed and approved Shifts will be processed in the ordinary course.

12. Limitation of Liability

The Company's liability to the Contractor under this Agreement shall be limited to the unpaid CO Pay for Shifts completed and approved by an AfyaWork administrator. The Company shall not be liable for any indirect, consequential, or special losses, loss of earnings, or loss of opportunity.

13. Entire Agreement and Amendments

This Agreement, together with the Clinical Officer Terms of Service, constitutes the entire agreement between the parties regarding the Contractor's use of the Platform and supersedes all prior discussions and agreements. The Company may amend this Agreement with 14 days' written notice.

14. Governing Law and Dispute Resolution

This Agreement is governed by the laws of the United Republic of Tanzania. Any dispute shall be referred first to AfyaWork's support team for informal resolution. If not resolved within 30 days, the dispute shall be submitted to the courts of Tanzania in Dar es Salaam.

15. General

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions shall continue in full force. The Company's failure to enforce any provision shall not constitute a waiver of that provision.

Acknowledgement

By registering and using the AfyaWork Platform, the Contractor acknowledges that they have read, understood, and agreed to this Independent Contractor Agreement.

Contractor Signature

Full Name: _____

Licence No: _____

Date: _____

For and on behalf of AfyaWork

Name: _____

Title: _____

Date: _____

This Agreement was last updated in May 2026. Contact support@afyawork.com with any questions.